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**\*\*File No. EXP202401730**

**\*\*RESOLUTION OF SANCTIONING PROCEDURE\*\***

From the procedure instructed by the Spanish Agency for Data Protection (AEPD) and based on the following

**\*\*BACKGROUND\*\***

**\*\*FIRST:\*\*** The **\*\*\*LOCALITY.1** Civil Guard Post refers to the AEPD the complaint filed by A.A.A. (hereinafter, the complainant) considering that the reported facts could violate data protection legislation. The complaint is directed against B.B.B. with NIF/NIE **\*\*\*NIF.1** (hereinafter, the respondent). The reasons on which the complaint is based are as follows:

The reported facts refer to the capture and recording of images of a minor along with his father, through a video surveillance system installed at the door of the respondent's home, which would subsequently have been disseminated via WhatsApp.

The complaint submitted to the Civil Guard contains the following documentation:

- Complaint filed with the Civil Guard by the complainant.
- Testimonial declaration record of Ms. C.C.C., neighbor of the complainant and (...).
- Testimonial declaration record of Ms. D.D.D., neighbor of the complainant and (...).
- Video of the minor and his father recorded and subsequently disseminated via WhatsApp by the respondent.

The recording was made on **\*\*\*DATE.1**.

The video shows images of the porch of a neighbor's house of the complainant where the camera is located, as well as the public road and the houses and vehicles located in front.

The recording captures images and sound of a conversation held between the complainant and his minor son in front of the door of that neighbor's house, before the latter (...).

(...).

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- **\*\*Diligence of exposure\*\***, carried out by the Civil Guard, dated November 27, 2023, in which, among other aspects, the following is indicated:

“After becoming aware of a complaint filed at the **\*\*\*LOCALITY.1** Civil Guard Post regarding recordings of a minor from a house towards the common areas of the urbanization, we went to **\*\*\*ADDRESS.1** to identify the owner of the house where the surveillance camera is supposedly installed.

Once we arrived at the house, we observed the mentioned camera next to the intercom of that house and did not observe any type of informative sign regarding the recording of images.

We proceeded to identify the owner of the house, clearly explaining the reason for our action, with her details being as follows:

Ms. B.B.B. NIF (NIE) **\*\*\*NIF.1** (...), phone **\*\*\*PHONE.1**, residing at **\*\*\*ADDRESS.1** (...).”

- **\*\*Diligence of the Civil Guard\*\*** recording the identification of the complainant.

- Annex of Report No. (...), which includes various documentation provided by the complainant, among them:

- A screenshot from the mobile phone of the minor's mother showing a statement made on Facebook by the respondent regarding the disappearance of a (...).

- A screenshot of the WhatsApp chat with Ms. D.D.D., neighbor of the complainant, with several messages informing the child's father that she has received a recording with images of the minor.

- Screenshots from Ms. D.D.D.'s phone showing the sending of the minor's video by the respondent. It is also observed that the video has been forwarded.

- Photocopy of the front and back of the minor's ID.

- Certificate (...).

**\*\*SECOND:\*\*** In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), this complaint was forwarded to the respondent, so that they could analyze it and inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

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The notification, which was carried out in accordance with the provisions established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was not received by the responsible party; the notification was reiterated on 01/03/2024 by certified postal mail, which was again Returned to Origin due to Excess (Not collected at the office) on 02/04/2024 at 08:35, after two attempts at notification resulted in Absence and a notice was left in the mailbox.

No response has been received to the notification letter.

THIRD: On March 13, 2024, in accordance with Article 65 of the LOPDGDD, the complaint filed by the claimant was admitted for processing.

FOURTH: On July 24, 2024, the Director of the Spanish Agency for Data Protection decided to initiate sanctioning proceedings against the respondent, for:

- For the alleged infringement of Article 6.1 of the GDPR, classified in Article 83.5 of said regulation.
- For the alleged infringement of Article 5.1.c) of the GDPR, classified in Article 83.5 of said regulation.
- For the alleged infringement of Article 13 of the GDPR, classified in Article 83.5 of said regulation.

FIFTH: The aforementioned initiation agreement was notified in accordance with the provisions established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP) and after the deadline granted for the submission of allegations had passed, it has been confirmed that no allegations have been received from the respondent.

Article 64.2.f) of the LPACAP - a provision of which the respondent was informed in the initiation agreement - establishes that if no allegations are made within the stipulated period regarding the content of the initiation agreement, when it contains a precise statement regarding the responsibility attributed, it may be considered a proposal for resolution. In this case, the initiation agreement of the sanctioning file determined the facts on which the accusation was based, the infringement of the GDPR attributed to the respondent, and the sanction that could be imposed. Therefore, considering that the respondent has not made any allegations regarding the initiation agreement of the file and in accordance with the provisions established in Article 64.2.f) of the LPACAP, the aforementioned initiation agreement is considered in this case as a proposal for resolution.

In light of all that has been acted upon, the Spanish Agency for Data Protection considers the following facts proven in the present procedure,

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## PROVEN FACTS

FIRST: The camera installed in the residence of the respondent recorded images of the claimant and their minor child, also capturing sounds (the conversation held between them and the initial part of the conversation held between the minor and the person who opened the door of the residence and attended to them).

This is reflected in the video that is part of this file. Said video, which begins recording on **\*\*\*DATE.1** at (...), shows images of the porch of the residence of the respondent, neighbor of the claimant, where the camera is located, as well as of the public road and the houses and vehicles located in front of said

residence.

The recording captures the images and sound of a conversation held between the claimant and their minor child in front of the door of said neighbor's residence, before the latter (...).

(...).

SECOND: The parents of the minor appearing in the video did not give their consent for the recording and subsequent dissemination of images of their child by the camera installed in the residence of the respondent.

The documentation related to the complaint, sent by the Civil Guard to the AEPD, highlights on several occasions that the parents of the minor did not consent to the dissemination of said images, nor the recording of the same:

In the letter dated December 5, 2023, by which the Civil Guard forwards the complaint filed with them by the claimant, in the section titled "OBSERVED INFRINGEMENTS" it is indicated:

"OBSERVED INFRINGEMENTS:

- Dissemination of images of a minor, without the consent of parents or guardians" (the underlining is from the AEPD).

In the complaint filed by the claimant, it is indicated:

"(...) one of the neighbors sent him a video where he and his child are seen at the entrance of the residence, even capturing their conversation and (...).

That said video has been disseminated without the consent of either the complainant or that of their partner, the mother of the minor, through the instant messaging application WhatsApp." (the underlining is from the AEPD).

In the documentation provided by the complainant, it is stated:

"That at no time have my spouse or I authorized the dissemination of such images." (the underlining is from the AEPD).

"-That in no case have I consented nor was I aware that such video capture was being carried out.

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- That at no time has the use and dissemination of these hurtful images and videos been authorized, as such a thing is not permissible, which only seeks to cause harm." (the underlining is from the AEPD).

THIRD: E.E.E., son of the claimant, whose images and voice appear in the video contained in this file, is a minor and has been recognized (...).

In relation to this matter, the documentation related to the complaint, sent by the Civil Guard to the AEPD includes:

- A photocopy of the minor's National Identity Document (DNI) showing the front and back.

- A certificate (...).

FOURTH: The respondent sent a message to several neighbors of the Community of Owners

\*\*\*COMUNIDAD.1 indicating that the minor, son of the claimant, (...).

The complaint sent by the Civil Guard to the AEPD includes a screenshot from the mobile phone of the minor's mother showing a message sent by the respondent to the Community of Owners

\*\*\*COMUNIDAD.1 with the following text in English:

"(...).

At the bottom, there is another message in Spanish sent to several people with the following text:

(...).".

FIFTH: The respondent disseminated the video featuring the minor to other people via WhatsApp:

The complaint sent by the Civil Guard to the AEPD includes a screenshot from the phone of Ms.

D.D.D., (...), at 07:28 showing that she received a message from the respondent, along with the video of the claimant and her minor child that is part of this file.

The aforementioned complaint includes a second screenshot showing the profile of the respondent (B.B.B.), as well as a message sent at 17:09 addressed to the president of the Community of Owners

with the following text:

(...).

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At the bottom, there is the video of the claimant and the minor, which is part of this file, sent at 11:35 (...) (at the top of the video, it is highlighted that it has been forwarded).

In the statement recorded before the Civil Guard, Ms. D.D.D. confirms that the respondent sent her a video of the claimant, along with her minor child, at the door of the respondent's residence.

SIXTH: The mobile number appearing in the screenshots accompanying the complaint indicates that the mobile number of the respondent is \*\*\*TELÉFONO.1. This mobile phone number matches that reflected by the Civil Guard in the report dated November 27, 2023, which identifies the owner of the residence where the camera is located.

SEVENTH: The camera installed in the respondent's residence captures images of the houses across the street, as well as of the public road, as reflected in the video recording images of the minor and his father, which is part of this file.

EIGHTH: No informational sign was installed to warn of the existence of the camera.

In relation to this matter, the report prepared by the Civil Guard dated November 27, 2023 highlights:

“Report

In \*\*\*LOCALIDAD.1 (Alicante), at (...) hours on November 27, 2023, acting as the Investigative Force for these proceedings, Agent (...) and Agent (...), hereby state that:

After becoming aware of a complaint filed at the Civil Guard Post in \*\*\*LOCALIDAD.1 regarding recordings of a minor from a residence towards the common areas of the urbanization, we went to \*\*\*DIRECCIÓN.1 to identify the owner of the residence where the surveillance camera is allegedly installed.

Once at the residence, we observed the aforementioned camera next to the intercom of said residence and did not observe any type of informational sign regarding the recording of images.

We proceeded to identify the owner of the residence, clearly explaining the reason for our action, with her details being as follows:

Ms. B.B.B., NIF (NIE) \*\*\*NIF.1, born on (...), phone \*\*\*TELÉFONO.1, residing at \*\*\*DIRECCIÓN.1” (underlining by the AEPD).

LEGAL GROUNDS

I

Competence

In accordance with the powers granted by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), to each

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The control authority, in accordance with the provisions of Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and the Guarantee of Digital Rights (hereinafter, LOPDGDD), is competent to initiate and resolve this procedure by the Director of the Spanish Agency for the Protection of Data.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for the Protection of Data shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued for its development, and, insofar as they do not contradict them, subsidiarily by the general rules on administrative procedures."

## Preliminary Issues

Article 4 "Definitions" of the GDPR defines the following terms for the purposes of the Regulation:

"1) 'personal data': any information relating to an identified or identifiable natural person ('the data subject'); an identifiable natural person is one who can be identified, directly or indirectly, in particular by reference to an identifier, such as a name, an identification number, location data, an online identifier, or one or more specific elements of the physical, physiological, genetic, mental, economic, cultural, or social identity of that natural person;"

"2) 'processing': any operation or set of operations performed on personal data or sets of personal data, whether by automated means or not, such as collection, recording, organization, structuring, storage, adaptation or alteration, retrieval, consultation, use, disclosure by transmission, dissemination or otherwise making available, alignment or combination, restriction, erasure or destruction;"

"7) 'data controller' or 'controller': the natural or legal person, public authority, agency, or other body which, alone or jointly with others, determines the purposes and means of the processing; where the purposes and means of that processing are determined by Union or Member State law, the data controller or the specific criteria for its designation may be provided for by Union or Member State law;"

In the present case, in accordance with the provisions of Article 4.1 of the GDPR, the processing of personal data is evident, as the respondent has captured and recorded images of the complainant and their minor child. In the aforementioned recording, the conversation held between the minor and their father has also been recorded. Subsequently, the respondent has disseminated said recording, which includes images and sound, via WhatsApp.

The respondent has carried out this activity in their capacity as data controller, as they are the one who determines the purposes and means of the processing, by virtue of Article 4.7 of the GDPR.

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III

### Obligation Breached under Article 6.1 of the GDPR

Article 6.1 of the GDPR establishes the circumstances under which the processing of personal data is considered lawful. This article provides:

"1. Processing shall be lawful only if and to the extent that at least one of the following applies:

- a) the data subject has given consent to the processing of their personal data for one or more specific purposes;
- b) processing is necessary for the performance of a contract to which the data subject is party or in order to take steps at the request of the data subject prior to entering into a contract;
- c) processing is necessary for compliance with a legal obligation to which the controller is subject;
- d) processing is necessary in order to protect the vital interests of the data subject or of another natural person;
- e) processing is necessary for the performance of a task carried out in the public interest or in the exercise of official authority vested in the controller;
- f) processing is necessary for the purposes of the legitimate interests pursued by the controller or by a third party, except where such interests are overridden by the interests or fundamental rights and freedoms of the data subject which require protection of personal data, in particular when the data subject is a child.

The provision in point f) of the first paragraph shall not apply to processing carried out by public authorities in the performance of their tasks."

In light of the documentation in the administrative file, the respondent would have recorded and subsequently disseminated via WhatsApp a video with images and sound of a conversation between the minor and their father (the complainant), the moments prior to opening the door of a neighbor's house for the minor to (...), as well as the beginning of a conversation between the minor and the

person who opens the door (proven facts first and fifth).

The documentation related to the complaint, sent by the Civil Guard to the AEPD, highlights on several occasions that the parents of the minor had not consented to either the recording or the dissemination of said images (proven fact second):

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In the official letter dated December 5, 2023, in which the Civil Guard forwards the complaint submitted to them by the claimant, it is stated in the section titled "OBSERVED INFRACTIONS":

"OBSERVED INFRACTIONS:

- Dissemination of images of a minor, without the consent of parents or guardians" (the underlining is from the AEPD).

In the complaint filed by the claimant, it is stated:

"(...) one of the neighbors sent him a video showing him and his son at the entrance of the house, even including their conversation and (...).

That this video was disseminated without the consent of either the complainant or his partner, the mother of the minor, through the instant messaging application WhatsApp." (the underlining is from the AEPD).

In the documentation accompanying the complaint, it is asserted:

"That, at no time have my spouse or I authorized the dissemination of such images." (the underlining is from the AEPD).

"- That in no case have I consented to or had knowledge that such video capture was being made.

- That at no time has authorization been granted, as something like this cannot be allowed, for the use and dissemination of these hurtful images and videos that seek nothing but harm." (the underlining is from the AEPD).

In the Annex of Report No. (...), consisting of various documents provided by the claimant, there are elements that demonstrate that the video of the claimant and his son was disseminated via WhatsApp by the claimant (proven fact five):

- Screenshots from the phone of Ms. D.D.D. showing the sending of the video of the minor by the respondent. It is also observed that the video has been forwarded (i.e., it had already been sent previously via WhatsApp).

The known facts constitute an infraction, attributable to the respondent, for violation of Article 6.1 of the GDPR.

#### IV

Classification and qualification of the infraction of Article 6.1 of the GDPR

The known facts constitute an infraction of Article 6.1 of the GDPR, attributable to the respondent, classified under Article 83.5 of the GDPR, which under the heading "General conditions for the imposition of administrative fines" states:

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"5. The infractions of the following provisions shall be sanctioned, in accordance with paragraph 2, with administrative fines of up to 20,000,000 EUR or, in the case of a company, an amount equivalent to 4% at most of the total annual global turnover of the previous financial year, opting for the higher amount:

- a) the basic principles for processing, including the conditions for consent under Articles 5, 6, 7, and 9;"

For the purposes of the statute of limitations for infractions, the alleged infraction prescribes after three years, in accordance with Article 72 of the LOPDGDD, which qualifies the following conduct as very serious:

“Article 72. Infractions considered very serious.

1. In accordance with what is established in Article 83.5 of Regulation (EU) 2016/679, the following infractions are considered very serious and shall prescribe after three years, which involve a substantial violation of the articles mentioned therein and, in particular, the following:

b) The processing of personal data without any of the conditions for lawful processing established in Article 6 of Regulation (EU) 2016/679.”

V

Obligation breached under Article 5.1 c) of the GDPR

Article 5.1 c) of the GDPR, regulating the Principles relating to processing, provides as follows:

1. Personal data shall be:

“c) adequate, relevant, and limited to what is necessary in relation to the purposes for which they are processed (‘data minimization’).”

It should be noted that individuals are responsible for ensuring that the installed video surveillance systems comply with current legislation, demonstrating that they meet all the requirements demanded by the applicable regulations.

The installation of such devices must have the requisite informative sign, indicating the purposes and the responsible party for the processing, if applicable, of personal data.

In any case, the cameras must be oriented towards private spaces, avoiding intimidating neighboring residents with such devices, as well as monitoring transit areas without justified cause.

Furthermore, such devices cannot capture images of public spaces, as this is the exclusive competence of the State Security Forces and Corps, under the terms of the current Organic Law 4/1997, August 4, by

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regulating the use of video cameras by the Security Forces and Corps in public places.

It is worth noting that even in the case of a "simulated" camera, it must preferably be oriented towards private spaces, as it is considered that such devices can affect the privacy of third parties, who feel intimidated by it under the belief that they are subject to permanent recording.

Individuals are not allowed to install devices for obtaining images of public spaces and/or the transit of third parties, except in cases permitted by the regulations.

The purpose of such devices must be the security of the property and its residents, avoiding the infringement of the rights of third parties who may feel intimidated by them.

The cameras must be limited to the protection of the property owned by the holder in such a way that they do not affect the areas of third parties who may feel intimidated by them, as they affect their free transit area.

The recording, submitted along with the complaint, shows that the installed camera captures images of the homes located across the street, as well as of the public thoroughfare (proven fact seventh).

The known facts constitute an infringement, attributable to the claimed party, for violation of Article 5.1 c) of the GDPR.

VI

Classification and qualification of the infringement of Article 5.1 c) of the GDPR

The known facts constitute an infringement of Article 5.1.c) of the GDPR, attributable to the claimed party, classified under Article 83.5 of the GDPR, which under the heading "General conditions for the imposition of administrative fines" states:

“5. Infringements of the following provisions shall be sanctioned, in accordance with paragraph 2, with administrative fines of up to 20,000,000 EUR or, in the case of a company, an amount equivalent to a

maximum of 4% of the total annual global turnover of the previous financial year, opting for the higher amount:

a) the basic principles for processing, including the conditions for consent under Articles 5, 6, 7, and 9;" For the purposes of the statute of limitations for infringements, the infringement attributed prescribes after three years, in accordance with Article 72 of the LOPDGDD, which qualifies the following conduct as very serious:

"Article 72. Infringements considered very serious.

1. According to what is established in Article 83.5 of Regulation (EU) 2016/679, the following infringements are considered very serious and shall prescribe after three years, which involve a substantial violation of the articles mentioned therein and, in particular, the following:

a) The processing of personal data violating the principles and guarantees established in Article 5 of Regulation (EU) 2016/679."

VII

Unfulfilled obligation of Article 13 of the GDPR

The installation of a video camera entails the unavoidable obligation to notify the presence of the same through an informative device, in a sufficiently visible location, identifying at least the existence of the processing, the identity of the controller, and the possibility of exercising the rights provided for in Articles 15 to 22 of the GDPR.

In this regard, Article 22, paragraph 4 of the LOPDGDD states: "The information duty provided for in Article 12 of Regulation (EU) 2016/679 shall be understood to be fulfilled by placing an informative device in a sufficiently visible location identifying, at least, the existence of the processing, the identity of the controller, and the possibility of exercising the rights provided for in Articles 15 to 22 of Regulation (EU) 2016/679. An access code or internet address to this information may also be included in the informative device."

In the complaint submitted to the Civil Guard, it is highlighted that the camera captures images of common areas, recording images of them, and that there is no sign warning of this camera.

Furthermore, in the Report prepared by the Civil Guard, it is indicated that on November 27, 2023, they confirmed that there is no type of informative sign (proven fact eighth):

"That once present at the residence, the aforementioned camera is observed next to the intercom of said residence, and no type of informative sign regarding the recording of images is observed." (the underlining is from the AEPD).

The previously described facts constitute an infringement of Article 13 of the GDPR, due to the lack of informative sign(s) with an effective address to which one could direct inquiries or indicate, if applicable, the main controller of the data processing.

Article 13 of the GDPR, which regulates the "Information to be provided when personal data is obtained from the data subject," states:

"Article 13

Information to be provided when personal data is obtained from the data subject

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1. When personal data relating to an interested party is obtained, the data controller shall provide the interested party, at the time of obtaining such data, with all the information indicated below:

a) the identity and contact details of the controller and, where applicable, of their representative;

b) the contact details of the data protection officer, where applicable;

c) the purposes of the processing for which the personal data are intended and the legal basis for the processing;

d) where the processing is based on Article 6(1)(f), the legitimate interests pursued by the controller or a third party;

e) the recipients or categories of recipients of the personal data, where applicable;

f) where applicable, the intention of the controller to transfer personal data to a third country or



international organization and the existence or absence of an adequacy decision by the Commission, or, in the case of transfers referred to in Articles 46 or 47 or Article 49(1), second paragraph, a reference to the appropriate or suitable safeguards and the means to obtain a copy of them or the place where they have been made available.

2. In addition to the information mentioned in paragraph 1, the data controller shall provide the interested party, at the time of obtaining the personal data, with the following information necessary to ensure fair and transparent data processing:

- a) the period for which the personal data will be stored or, when that is not possible, the criteria used to determine that period;
  - b) the existence of the right to request from the data controller access to personal data relating to the interested party, and their rectification or erasure, or the restriction of processing, or to object to the processing, as well as the right to data portability;
  - c) when the processing is based on Article 6(1)(a) or Article 9(2)(a), the existence of the right to withdraw consent at any time, without affecting the lawfulness of the processing based on consent before its withdrawal;
  - d) the right to lodge a complaint with a supervisory authority;
- (...)

3. When the data controller intends to further process personal data for a purpose other than that for which they were collected, they shall provide the interested party, prior to that further processing, information about that other purpose and any other relevant information pursuant to paragraph 2.  
(...)"

The known facts constitute an infringement, attributable to the respondent party, for violation of Article 13 of the GDPR.

## VIII

Typification and qualification of the infringement of Article 13 of the GDPR

The known facts constitute an infringement of Article 13 of the GDPR, attributable to the respondent party, classified under Article 83.5 of the GDPR, which under the heading "General conditions for the imposition of administrative fines" states:

"5. Infringements of the following provisions shall be subject to administrative fines of up to 20,000,000 EUR or, in the case of an undertaking, an amount equivalent to up to 4% of the total annual global turnover of the preceding financial year, opting for the higher amount:

- b) the rights of the data subjects under Articles 12 to 22;"

For the purposes of the limitation period for infringements, the alleged infringement is subject to a three-year limitation period, in accordance with Article 72 of the LOPDGDD, which classifies the following conduct as very serious:

"Article 72. Infringements considered very serious.

- 1. In accordance with what is established in Article 83.5 of Regulation (EU) 2016/679, the following infringements shall be considered very serious and shall be subject to a three-year limitation period, which involve a substantial violation of the articles mentioned therein and, in particular, the following:
  - h) The omission of the duty to inform the affected party about the processing of their personal data as provided for in Articles 13 and 14 of Regulation (EU) 2016/679 and Article 12 of this organic law."

## IX

### Sanctions

Each of these infringements may be sanctioned with a fine of up to 20,000,000 EUR or, in the case of an undertaking, an amount equivalent to up to 4% of the total annual global turnover of the preceding financial year, opting for the higher amount, in accordance with Article 83.5 of the GDPR.

Furthermore, it is considered appropriate to graduate the sanction to be imposed in accordance with the following criteria established in Article 83.2 of the GDPR:

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“2. Administrative fines shall be imposed, depending on the circumstances of each individual case, as an additional or substitute measure for those contemplated in Article 58, paragraph 2, letters a) to h) and j). In deciding the imposition of an administrative fine and its amount in each individual case, the following shall be duly taken into account:

- a) the nature, seriousness, and duration of the infringement, taking into account the nature, scope, or purpose of the processing operation in question, as well as the number of affected parties and the level of damages suffered;
- b) the intentionality or negligence in the infringement;
- c) any measures taken by the data controller or processor to mitigate the damages suffered by the affected parties;
- d) the degree of responsibility of the data controller or processor, taking into account the technical or organizational measures they have applied pursuant to Articles 25 and 32;
- e) any previous infringement committed by the data controller or processor;
- f) the degree of cooperation with the supervisory authority in order to remedy the infringement and mitigate the possible adverse effects of the infringement;
- g) the categories of personal data affected by the infringement;
- h) the manner in which the supervisory authority became aware of the infringement, in particular whether the data controller or processor notified the infringement and, if so, to what extent;
- i) when the measures indicated in Article 58, paragraph 2, have been previously ordered against the data controller or processor in relation to the same matter, compliance with such measures;
- j) adherence to codes of conduct under Article 40 or to certification mechanisms approved under Article 42,
- k) any other aggravating or mitigating factor applicable to the circumstances of the case, such as financial benefits obtained or losses avoided, directly or indirectly, through the infringement.”

In relation to letter k) of Article 83.2 of the GDPR, the LOPDGDD, in its Article 76, “Sanctions and corrective measures,” provides:

“1. The sanctions provided for in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679 shall be applied taking into account the criteria for graduation established in paragraph 2 of the aforementioned article.

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2. In accordance with the provisions of Article 83.2.k) of Regulation (EU) 2016/679, the following may also be taken into account:

- a) The continued nature of the infringement.
- b) The connection of the infringer's activity with the processing of personal data.
- c) The benefits obtained as a result of the commission of the infringement.
- d) The possibility that the conduct of the affected party could have included the commission of the infringement.
- e) The existence of a merger by absorption after the commission of the infringement, which cannot be attributed to the absorbing entity.
- f) The impact on the rights of minors.
- g) Having, when not mandatory, a data protection officer.
- h) The voluntary submission by the data controller or processor to alternative dispute resolution mechanisms, in cases where there are disputes between them and any affected party.”

#### 1. Sanction for the infringement of Article 6.1. of the GDPR

In accordance with the transcribed provisions, for the purpose of setting the amount of the sanction for the infringement of Article 6.1 of the GDPR, it is appropriate to graduate the fine against the party claimed as responsible for the aforementioned infringement typified in Article 83.5 of the GDPR, taking into account:

As an aggravating factor, the provisions of Article 76.2 f) of the LOPDGDD:

“f) The impact on the rights of minors.”

The images that would have been disseminated via WhatsApp belong to a minor (...).

In light of the facts presented, it is considered appropriate to impose a sanction on the claimed party for the violation of Article 6.1 of the GDPR, typified in Article 83.5 of the GDPR. The sanction to be imposed is an administrative fine in the amount of 2400.00 euros.

#### 2. Sanction for the infringement of Article 5.1.c) of the GDPR

In light of the facts presented, it is considered appropriate to impose a sanction on the claimed party for the violation of Article 5.1 c) of the GDPR, typified in Article 83.5 of the GDPR. The sanction to be imposed is an administrative fine in the amount of 300.00 euros.

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#### 3. Sanction for the violation of Article 13 of the GDPR

In light of the facts presented, it is deemed appropriate to impose a sanction on the respondent for the infringement of Article 13 of the GDPR, as stipulated in Article 83.5 of the GDPR. The sanction to be imposed is an administrative fine in the amount of 300.00 euros.

X

#### Adoption of measures

Having confirmed the violations, it is necessary to impose on the responsible party the adoption of appropriate measures to align their actions with the regulations mentioned in this act, in accordance with the provisions of the aforementioned Article 58.2 d) of the GDPR, which states that each supervisory authority may “d) order the controller or processor to ensure that the processing operations comply with the provisions of this Regulation, when appropriate, in a specific manner and within a specified timeframe.”

It is noted that failure to comply with the order to adopt measures imposed by this agency in the sanctioning resolution may be considered an administrative infringement in accordance with the provisions of the GDPR, classified as an infringement in Articles 83.5 and 83.6, which may lead to the initiation of further administrative sanctioning proceedings.

Therefore, in accordance with the applicable legislation and having assessed the criteria for the graduation of the sanctions whose existence has been established, the Director of the Spanish Agency for Data Protection

#### RESOLVES:

FIRST: TO IMPOSE on B.B.B., with NIF \*\*\*NIF.1, for:

- A violation of Article 6.1 of the GDPR, classified under Article 83.5 of the GDPR, a fine of 2400.00 euros.
- A violation of Article 5.1 c) of the GDPR, classified under Article 83.5 of the GDPR, a fine of 300.00 euros.
- A violation of Article 13 of the GDPR, classified under Article 83.5 of the GDPR, a fine of 300.00 euros.

SECOND: TO ORDER B.B.B., with NIF \*\*\*NIF.1, to demonstrate compliance with the following measures in accordance with Article 58.2.d) of the GDPR:

Within 2 months from the date this resolution becomes final and enforceable, the respondent must either remove the camera or reorient it, in accordance with the provisions of Articles 22.1 and 22.2 first paragraph of the LOPDGDD.

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In the event that the option to reorient the camera is chosen and it captures any proportional space of the public thoroughfare, in accordance with the provisions of Article 22.2 first paragraph of the LOPDGDD:

- Demonstrate that the camera does not capture sounds from the public thoroughfare.
- Demonstrate that the mandatory information sign has been placed in a visible location.
- Demonstrate that the information referred to in Article 13 of the GDPR is available to the affected parties.

THIRD: NOTIFY this resolution to B.B.B.

FOURTH: This resolution will be enforceable once the period for filing the optional appeal for reconsideration (one month from the day following the notification of this resolution) has elapsed without the interested party having exercised this right.

The sanctioned party is warned that they must pay the imposed sanction once this resolution becomes enforceable, in accordance with the provisions of Article 98.1.b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter LPACAP), within the voluntary payment period established in Article 68 of the General Collection Regulation, approved by Royal Decree 939/2005, of July 29, in relation to Article 62 of Law 58/2003, of December 17, by making the payment, indicating the NIF of the sanctioned party and the procedure number that appears in the heading of this document, to the restricted account No.

IBAN: ES00-0000-0000-0000-0000-0000 (BIC/SWIFT Code: CAIXESBBXXX), opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A. Otherwise, collection will proceed in the executive period.

Upon receipt of the notification and once enforceable, if the date of enforceability falls between the 1st and 15th of each month, inclusive, the deadline for voluntary payment will be until the 20th of the following month or the next business day, and if it falls between the 16th and the last day of each month, inclusive, the payment deadline will be until the 5th of the second following month or the next business day.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file an appeal for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and paragraph 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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Finally, it is noted that in accordance with the provisions of Article 90.3 a) of the LPACAP, the firm resolution in the administrative pathway may be suspended provisionally if the interested party expresses their intention to file a contentious-administrative appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of the aforementioned Law 39/2015, of October 1. They must also provide the Agency with documentation that proves the effective filing of the contentious-administrative appeal. If the Agency is not aware of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, it will consider the provisional suspension to be concluded.

938-16012024

Mar España Martí

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